

Committee: World Health Organization

Topic: The Question of Establishing International Regulations for Medical AI and Digital Health Technologies

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Introduction

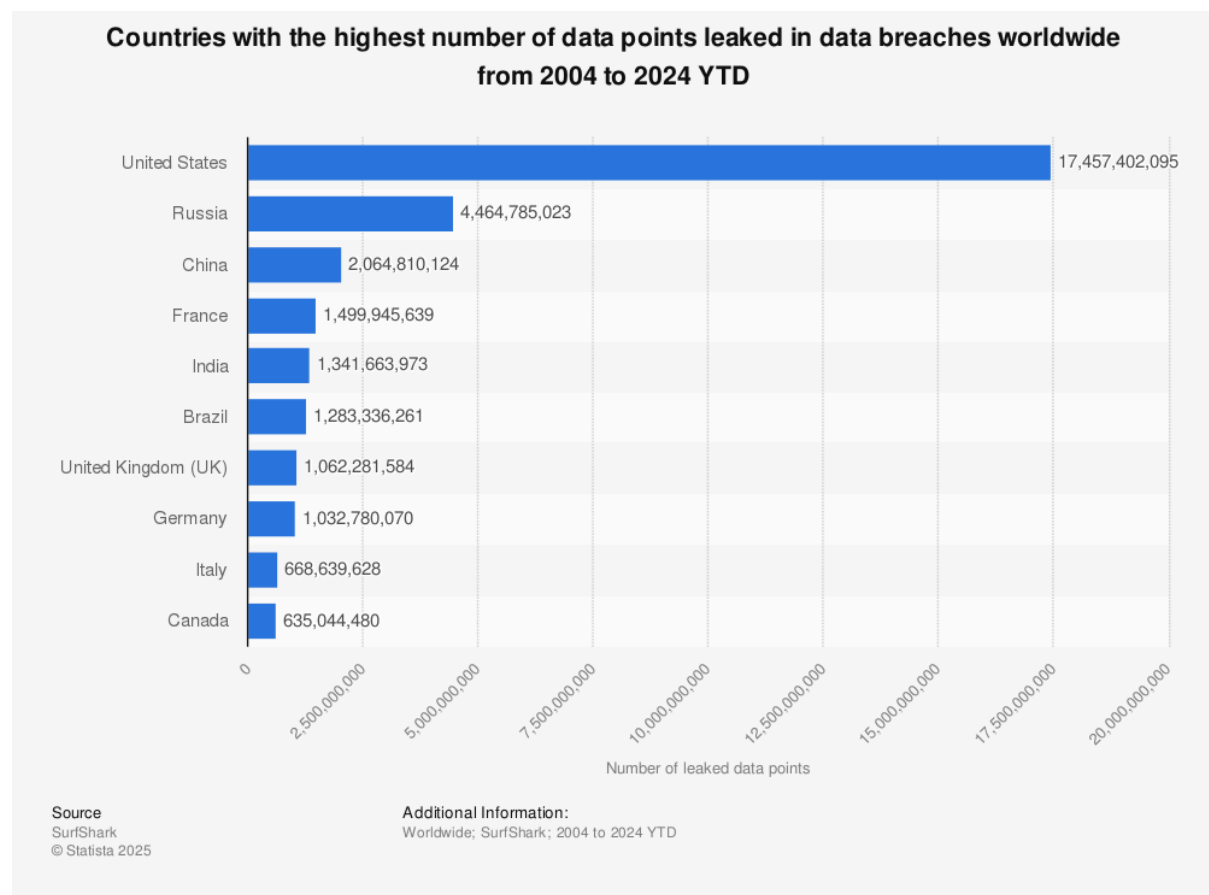
In the era of Artificial Intelligence, the idea of digital health has become a significant issue of the WHO (World Health Organization) since the early 2000s, when the use of Artificial Intelligence started to be utilized in the medical industry. Digital health technologies represent both hardware and software medical treatments, utilizing AI technologies such as telehealth platforms, wearable devices, and EHRs (electronic health records).

Medical AI is an AI-based healthcare technology that has become a key technology in the modern healthcare industry. AI was first introduced in the medical scene in the 1960s, a few years after the creation of AI. The early medical AI laid the foundation with the development of systems like Dendral, designed to analyze mass spectrometry data. It was mostly used for simple tasks such as imaging and analyzing data. In the 1970s, AI started to assist in the diagnosis of bacterial infections and recommend antibiotics. The period in which medical AI has been utilized is the early 2000s. As deep learning technology developed, the limitations of AI were being solved. Initial prototypes of AI systems introduced machine learning to analyze EHRs (electronic health records) and medical images. Today, AI applications show promise in diagnostics. They started assisting radiologists by highlighting potential areas of interest in imaging studies, such as MRI and CT scans. AI's capability to recognize patterns in large datasets facilitated early detection of diseases.

Digital healthcare technology has a shorter history compared to medical AI. It was first invented in 2007, by the name of 'E-patient'. The website aimed to connect, inform, and take patients' health into their own hands. Not only did this help to create the autonomy of patients, but it also helped to begin the movement of having doctors work together with the patient, rather than instruct them. After several movements of the late 2000s, the COVID-19 pandemic led to the universalization

of digital healthcare. The representative examples such as ehealth, mhealth, and telehealth were widely employed during the COVID-19 era. These technologies were used to monitor patients' general health status.

Despite the growth that Medical AI and digital healthcare have brought to the medical field, the side effects of AI and digital devices are still controversial. Personal information leaks, for instance, are one of the most severe issues that could occur from the use of digital devices. In terms of private data leaks, it is essential to prevent the aftermath from happening again. Because of data breaches, over 1 billion victims arise every year. These exposures are mainly private information of users, which can actually lead to serious legal problems. Therefore, strengthening privacy policies and network monitoring could be effective solutions. Besides the danger of data leakage, the low access to AI and digital devices is another problem that should be solved. Even during the COVID-19 era, developing nations and remote regions had a low percentage of digital healthcare use. These areas need improvements in internet and electronic facilities in order to increase the utilization of digital technologies.



Countries with the highest number of data points leaked in data breaches worldwide from 2004 to 2024 (Statista, 2025)

Definition of Key Terms

Digital Health Technologies and Services

Digital health technology refers to the use of digital tools and technologies to improve overall health management including healthcare delivery, public health programs, and strategic healthcare systems. WHO defines the term as “The systematic application of digital technologies, computer science, and data to support informed decision-making by individuals, health workers, and health systems, to strengthen resilience against diseases, and to improve health and well-being.”, aimed at addressing nine challenges including accountability, cost, and efficiency. It encompasses a wide range of applications, including telehealth, mobile health apps, wearable devices, electronic health records, and personalized medicine. Digital health aims to enhance healthcare efficiency, accessibility, and patient engagement, while also supporting preventative care, harm reduction, and improved therapies.

EHealth

EHealth consists of a much broader understanding of healthcare practices supported by electronic processes. The technology used to improve healthcare practices with eHealth includes electronic health records, patient administration systems, lab systems, and other records that cannot be stored within mobile health applications.

MHealth

MHealth is an abbreviation for mobile health, which utilizes mobile devices, such as a cellphone or a tablet, to support healthcare practices. With mHealth services, patients are able to log, store, and monitor their health records on their personal mobile devices. These applications are helpful in improving the efficiency of the delivery of healthcare information. MHealth applications can be helpful in research and practitioner and patient use.

The global mHealth market is growing rapidly and is expected to continue expanding. The market, currently worth hundreds of billions of dollars, is expected to more than double by 2030. Each year, the market shows a substantial increase in size, demonstrating that mHealth is playing in the digital transformation of the healthcare sector.

Telehealth and Telemedicine

Telehealth is defined as the use of electronic information and telecommunication technologies to support long-distance clinical health care, patient and professional health-related education, health administration, and public health. Video conferencing, wireless communication, Store-and-forward imaging, the internet, and streaming media are all used for telehealth technology.

When comparing the telehealth usage rate of the pre- and post-pandemic era, with COVID-19 lockdowns and restrictions on in-person care, telehealth visits increased dramatically. While the peak demand has declined, telehealth has become a permanent complement to in-person care, especially in mental health, chronic disease management, and rural or underserved areas.

Artificial Intelligence

Artificial Intelligence is the ability of computer systems to perform tasks that typically require human intelligence, such as learning, problem-solving, and decision-making. In the field of digital health, AI is used for enhancing diagnostics, personalizing treatment, streamlining administrative tasks, and improving patient engagement. As the technology develops, the use of AI is being expanded, which makes the role of AI in the healthcare industry more necessary.

Despite the impact and advantages of AI in the industry, AI still leaves a lot of issues, including patient safety, unclear accountability, data bias, and privacy concerns. There are ongoing efforts to overcome these problems internationally, yet the regulation of privacy and solutions for indefinite responsibility and data bias are still vague, needing further actions for global AI formulation.

EHR (Electronic Health Record)

Electronic Health Record (EHR) is an electronic version of a patient's medical history that is maintained by the provider over time, and may include all of the key administrative and clinical data relevant to that person's care under a particular provider. It includes demographics, progress notes, medications, vital signs, laboratory data and radiology reports.

Wearable Healthcare Devices

Wearables refer to electronic devices designed to be worn on the body, either as accessories or as part of clothing. These devices are equipped with sensors, processors, and connectivity features, allowing them to collect data, perform tasks, and communicate with other devices. Fitness trackers, smartwatches, and payment wearables are examples. In terms of healthcare, it aims to improve patient care and reduce payment costs.

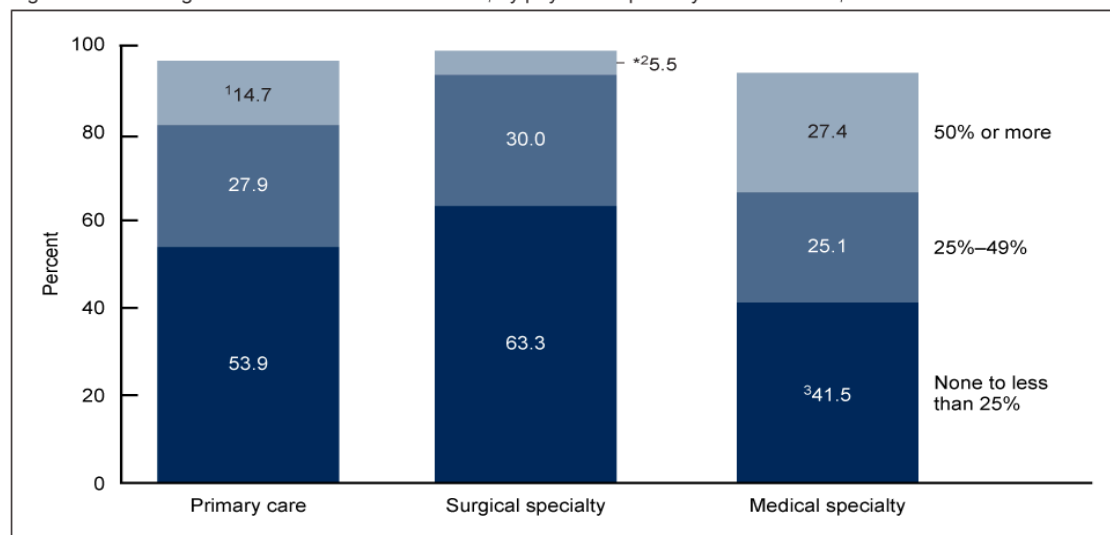
Background Information

International Uses of Telehealth

In the late 2000s, after the invention of digital health, the technological changes can be divided into pre- and post-pandemic periods. The overall digital scene in the medical industry, as mentioned previously, has shown great growth during the pandemic. It is understandable that the pandemic contributed to the development of digital health settlement as people solely relied on wired technology in order to communicate back then.

The telehealth system has developed extremely during the COVID-19 pandemic when compared to the past. Before the pandemic era, telehealth was originally designed as a supplementary tool to provide healthcare to remote communities. However, due to the huge growth of telehealth during the pandemic, it has become possible to achieve policy institutionalization and build a hybrid model today. When comparing the change in the number of medical treatments, before the pandemic, telehealth accounted for less than 1% of all outpatient visits. During the pandemic, it surged to over 50%. While it has since declined, it still remains at a level approximately 38 times higher than before the pandemic, accounting for 8-9% of all outpatient visits, according to HHS (U.S. Department of Health & Human Services) and CDC (Centers for Disease Control and Prevention).

Figure 1. Percentage of visits with telemedicine use, by physician specialty: United States, 2021



Percentage of visits with telemedicine use, by physician specialty in the United States (National Center for Health Statistics, 2024)

The technology seems to be developing without any problems; however, as the telehealth system relies on electronic devices, the limitations of telecommunications are the future challenges of telehealth that should be solved. Increasing the usage of those who live in areas where the internet environment is not developed and setting future directions are being discussed to create better overall telehealth circumstances.

The Impact of Artificial Intelligence on the Medical Industry

AI, after its implementation in the medical field, has brought great development in pharmaceutical creation. According to 'Current Status and Future Direction of Artificial Intelligence in Healthcare and Medical Education' published by KRICT (Korea Research Institute of Chemical Technology), the AI-driven drug discovery market reached 1.8 billion dollars last year, projected to grow to approximately 6.8 billion dollars in 2029, which is nearly 4 times bigger than last year. Furthermore, in June 2025, it was reported that a new drug developed using artificial intelligence had achieved clinical success for the first time.

Massive data collection is also a product of medical AI as well as AI-driven medicine expansion. Data collection is extremely critical when it comes to overcoming the limitations of current medical technology. The more information gathered about a particular disease case, the higher the rate of early detection of the disease. Beyond this, the amount of information a country possesses ultimately indicates the potential of the technology. For instance, data such as EHR and digital health usage can be utilized to develop medical technologies. In other words, the future of a country's medical technology hinges on how AI is applied and used.

It is an undeniable fact that AI has brought significant changes to the industry, though the concerns of AI's negative capabilities have constantly been brought up ever since it was used for healthcare. Data bias, misdiagnosis, and privacy policies are the representative examples. These AI shortcomings cause another issue, which is the absence of a responsible entity. It is difficult to determine who is responsible, and therefore, there are few cases in which victims receive proper compensation. Accordingly, if AI technology continues to cause harm to patients, its credibility and usage will inevitably decline. As the system appears in various results, the aftermath AI can fetch in the medical field could be fatal, while also constructive at the same time.

Conventions and Meetings Regarding Digital Health to Date

Factors, including rapid AI development and the universalization of digital healthcare, have raised awareness of digital health worldwide. The UN, in March 2024, adopted the first resolution on AI as if it acknowledged the impact of digital tools. Following the resolution, in May 2024, the 'AI for Good' summit was held in Geneva, mainly focusing on AI applications in medical, educational, and environmental fields. To point out several noteworthy projects done by the UN would be the WHO's Digital Health Strategy 2020–2025 and the UNDP's Digital Health for Development Hub. Both of them support the digitalization of the nation's health system through technology, advisory services, and partnerships. While the Digital Health Strategy encourages digital solutions, standardization, data sharing, and innovation, the Digital Health for Development Hub is a platform that supports the introduction and expansion of digital and AI health solutions.

As well as the global projects that the UN has made, the national and corporate actions to address digital health have been dealt with in a wider range. After the impact of COVID-19, the worldwide conferences are regularly being held. The ML4H Symposium 2024 (Machine Learning for Health Symposium) was held in December 2024, mainly debating and sharing information about recent research. The World Health Summit 2025 is an annual AI health-tech conference aimed at discussing the socio-economic effects of digital AI in the current and future economy. Lastly, in the ICDH 2025 (IEEE International Conference on Digital Health), which was a part of the IEEE (the Institute of Electrical and Electronics Engineers) World Congress on SERVICES, there was a conversation on digital health solutions that are practically implemented and effective solutions.

The launch of the WHO-ITU global standard for accessibility of telehealth services is one of the most representative frameworks for sustainable uses of digital health. It mainly focuses on the methods to enable the use of telehealth for disabled people and the elderly. There are other international regulations on digital health and medical AI, but because there is still no fully unified regulatory framework globally, an opportunity for many countries and organizations to share their views and create ideal regulations is needed.

Possible solutions

Strengthening Privacy Policies and Systems

Personal data protection is a timeworn issue of digital device usage. Despite the presence of current privacy policies such as GDPR and CCPA, the personal information outflow of users is still an unsolved question of the global security system. Every year, thousands of data breaches happen and privacy policies are changing accordingly.

In 2015, one of the biggest health insurance companies, “*Anthem*”, experienced a huge data leak of approximately 80,000,000 patients. The exposed data included such information as names, birthdays, and a portion of health records. As it was an accumulated contents of an insurance company, the data were extremely personal information related to financial circumstances. Due to the huge impact of this fatal incident, *Anthem* had to pay a fine of 16 million U.S. dollars as stated in the HIPAA (Health Insurance Portability and Accountability Act). The privacy policies of the U.S. were reinforced in terms of informational security. Encryption systems and external intrusion response training became mandatory, and MFA (Multi-Factor Authentication) and partner management were implemented. Most situations, including the *Anthem* data leaks, affect the UN’s tasks in the field of securing data privacy and safety. The UN resolutions cite those cases to emphasize the importance of data protection and privacy guarantees, while UNHCR (United Nations High Commissioner for Refugees) and WHO (World Health Organization) urge the nations about information leak incidents and present health information protection principles.

Reorganizing privacy policies will never reach a limit as digital technologies are developing endlessly. As mentioned, securing the information of patients is one of the most essential groundwork, allowing the users to trust and adopt the digital healthcare services broadly. To maintain the reliability of digital health, privacy protection laws should include the contents of verified cybersecurity and more sophisticated validation.

Facilitating Access for Remote Areas

Healthcare environments in rural regions, especially digital healthcare systems, are low quality and lack supplies compared to urban areas. Even though the telehealth policies were designed for the residents living in places where the Internet is not installed or where Internet access is difficult,

the issue of low access to healthcare in these areas remained as an essential flaw of digital healthcare. In order to mitigate this drawback, domestic-level policies are more recommended than international-level policies.

Facilitating access in rural areas, more specifically building internet infrastructures, and establishing rural-focused policies in order to improve the healthcare quality can be done by domestic support. India, for example, launched the BharatNet initiative, aiming to provide high-speed broadband to over 250,000 rural villages. This project has been central to enabling telemedicine services such as eSanjeevani, a government-supported telehealth platform that has conducted millions of consultations, particularly benefitting underserved rural populations. Likewise, countries including the U.S., Australia, and Brazil have similar cases of activating the healthcare system in rural areas.

Introducing International Regulations on the Use of Artificial Intelligence

As the digital AI technology is formulated in the modern phase, the legal instruments that regulate the misuse and encourage regulatory consistency is deemed insufficient. To reduce the international institutional confusion, meetings and treaties are being held, yet the perception or the interpretation of medical AI varies by nation. Strengthening existing regulations and creating guidelines for further medical developments are needed.

Most of the recent regulatory enactments are being set by the European nations, which include the EU AI Act and Framework Convention on AI. The EU AI Act handles specifically the regulation of AI systems by type based on risk level, ultimately leading to the establishment of Europe's own AI guidelines, subordinate statutes, and implementation mechanisms, through the European Artificial Intelligence Board. The Framework Convention on AI seems to have done similar actions with the EU AI Act, though it concentrates on establishing provisions to protect human dignity and democratic procedures and establishing risk control and accountability structures. While Europe focuses on internal operations, the OECD-led Global Partnership on AI, and the G7 guidelines and code of conduct is a global project that embraces more nations widely.

Today, with the extreme development of AI technology, it is now very crucial to set international guidelines for AI safety verification standards and data bias prevention. The advanced features of AI, especially the machinery autonomy, have substantial differences in legal restrictions. The gap comes from the nations' vibrancy of technological progress, which matters the development

of digital-related regulations. In order to reduce the gap between nations, unified guidelines and frameworks are indispensable.

Sharing Technologies and Resources Over Nations

As most of the medical technology developments vary by country, some are suffering from the untamed mechanisms and unprepared equipment. Those nations that are facing insufficient technology, domestic efforts are not enough to mitigate the situation. But on the other side of the globe, countries that are economically ahead have more elaborate systems. This can indicate national competitiveness; however, it simultaneously causes global healthcare inequality. To solve the technological gap between nations, sharing technologies, data, and manpower is the most suggested method worldwide.

One of the examples of digital health technology sharing is between South Korea and Uzbekistan in 2022. Through the interaction, South Korea shared the EHR (Electronic Health Record) systems and training of medical personnel in robotic surgery and diagnostics. It was shared by the type of bilateral tech transfer under the official government MoU (Memorandum of Understandings). This case is specifically aimed at technological collaboration; however, the actions of international projects can also be applied to setting global regulations. By surpassing the stakes of each country, those nations will be able to utilize ethical, safe, and identical standards.

Most of the technology sharing cases are led by international organizations such as the WHO, yet, like the mentioned case, there are still several state-to-state tech sharing events in which external organizations are not engaged in. Additionally, open source platforms and multinational projects, though rare, have proven highly effective in terms of spreading the resources as they provide opportunities to several countries to receive substantial support. These international data sharing projects not only mitigate the gap of healthcare quality, but also provide international guidelines and frameworks. By those actions, regulatory consistency, especially regarding medical AI tools and digital healthcare, can be established. Thus, to set global healthcare and AI regulation policies in versatile ways, regular meetings and summits can play a big part in connecting those national perspectives.

Major Parties Involved

Republic of Estonia

During COVID-19, while every European nation was suffering from massive resource depletion, Estonia's healthcare system was stable as usual. The Digital Healthcare system in Estonia indicates high usage rates and exhaustive security systems. With more than 99% of patient data generated by doctors and hospitals being digitized, Estonians can easily access their data via a very secure online portal. The adaptation of digital caring services has become so broad that even deaths are being registered online autonomously. Since the late 1990s, Estonia has contributed to diverse medical establishments, including eHealth, and Electronic Healthcare Records. According to the Bertelsmann Stiftung Digital Health Index, when most of the neighboring countries have implemented advanced medical technologies, Estonia has placed first above them all.

Kingdom of Denmark

Denmark has one of the most advanced digital health systems and is technologically looking forward. The Danish government has managed to build an integrated network with the main focus on patients and the safety of their data. As Denmark is one of the most prosperous nations in the EU, diverse programs addressing digital healthcare are made, such as the Strategic Digital Initiatives (2016-2020), and the Digital Health Strategy (2018-2022). At the level when all Danish citizens and doctors have access to their own Electronic Health Records, the new system aims at establishing a higher level of data security, integrated care, and prevention initiatives. Denmark has participated in the EU AI Act, which means the legal framework stated in the provision applies in Denmark as well.

Kingdom of Sweden

Sweden, one of the early adopters of digital, is also showing great innovations in the medical field. Since 2018, patients have been allowed to check their Electronic Health Records, including their history, medicines, test results, and appointment bookings. The Swedish have access to multiple apps for healthcare systems navigation, booking physical or virtual appointments with general doctors, tracking their medical records, and receiving treatment. Moreover, In Stockholm, It is mandatory for

providers to provide digital services to help patients with personalized services. As the country has officially implemented the EU AI Act, Swedish authorities and organizations are providing guidance and offering resources to help Swedish businesses understand and prepare for compliance with the new regulations.

People's Republic of Bangladesh

In 2023, Bangladesh established the Bangladesh Digital Health Strategy 2023-2027, aiming to build a sustainable and inclusive medical system for the Bangladeshi citizens. The major goals of the strategy are digitally connecting all sorts of public health facilities and using EHR (Electronic Health Records), adopting robust cybersecurity protocols across all national health databases, and training more than 100,000 professionals in digital health tools and practices. Despite these current efforts of the Bangladesh government, Bangladesh still shows low ranks in the global healthcare rankings, as well as low healthcare usage rates. Access issues in the rural areas and the high costs of healthcare services are the main factors leading Bangladeshi citizens to rely on the private health service providers, while only a small part of them utilize the public healthcare.

Republic of South Sudan

After the internal conflict, South Sudan has encountered massive challenges such as the destruction of healthcare facilities and a lack of medical supplies. Not only these problems, but also the scarcity of health professionals is a severe problem of the ongoing situation of South Sudan. Because of these circumstances, South Sudan's healthcare system is known as one of the lowest quality in the world. South Sudan is receiving support from various international organizations like the WHO (World Health Organization), UNICEF (United Nations Children's Fund), the World Bank, and MSF (Doctors Without Borders). South Sudan lacks not only medical environments but also the resources to enhance the level of its own digital health system, requiring advanced technologies and international operations to directly support South Sudan's medical reconstruction.

Plurinational State of Bolivia

The low level of sanitation and the vulnerability to epidemics are key challenges of healthcare in Bolivia. However, when compared to the past, Bolivia presents improvements generally. Even though the SUS (National Health Insurance) was established in 2019, aimed at providing basic healthcare services to the population, it barely contributed to access to quality healthcare. Bolivia is

constantly being mentioned as one of the medically slowest developing countries in Latin America. Like Bangladesh and South Sudan, Bolivia is receiving medical aid support from the UN joint programs, including HIV prevention and treatments. Although Bolivia is laying the foundation of the digital health mechanism, they are still facing the challenges of strengthening policy foundations, maturing infrastructure, and integrating research and implementation capabilities.

Timeline Of Events

Date	Description of Event
<i>The Appearance of Artificial Intelligence, 1956</i>	After the Turing Test in the 1950, from the Dartmouth Summer Research Project on Artificial Intelligence, the idea and term of ‘Artificial Intelligence’ was first used. However, the phase in of AI took several years after this project.
WHO published “A Health Telematics Policy in Support of WHO’s Health-for-All Strategy”, 1997	The report provided the first global policy framework on telemedicine, encouraging member states to adopt health telematics to expand healthcare access, particularly in underserved areas. It emphasized standards, equity, and integration into national health systems to align with WHO’s broader “Health for All” vision.
<i>The Creation of E-patient White Paper, 2007</i>	The E-patient white paper is known as the first medical AI, which led to further development of independent patient healthcare systems.
<i>IDx-DR Approved by FDA, 2018</i>	It was the first time for the FDA to grant the use of IDx-DR, which is an AI system that allows patients to diagnose diabetic retinopathy autonomously. It is still evaluated as a historic event for the implementation of AI in the medical industry.
<i>World Health Assembly Resolution on COVID-19 Response and Digital Health, 2020</i>	WHO held virtually for the first time in May 2020 due to the COVID-19 pandemic, WHA73 highlighted the essential role of digital health and telemedicine in global health responses. Member states emphasized the use of AI and digital tools to maintain healthcare access while reducing physical contact, marking a turning point in international recognition of digital health.
<i>EU AI Act, 1 August 2024</i>	The European Union enacted the world’s first comprehensive AI regulation, classifying medical AI as "high-risk" and imposing strict mandates on transparency, safety assessments, and human oversight. This legal framework sets a global precedent for governing AI systems used in healthcare.

UN Involvement, Resolutions, Treaties and Events

- UNGA (United Nations General Assembly) Global health and foreign policy: rethinking health promotion as a transformative path towards improved and more sustainable well-being for all, May 2, 2025

With 193 member countries, UNGA discussed the resolution adopted by the General Assembly on 29 April 2025. This resolution calls upon cooperations with WHO and relevant United Nations entities and UNGA member states. It is one of the most recent resolutions related to the issue of digital healthcare.

- UNGA (United Nations General Assembly) Seizing the opportunities of safe, secure and trustworthy artificial intelligence systems for sustainable development, April 1, 2024

This is a resolution adopted by the General Assembly on 21 March 2024, illustrating the participation of nations in the UNGA to implement various policies and measures of transparent Artificial Intelligence systems. It is the first-ever resolution dedicated exclusively to AI.

- WHA (World Health Assembly) Having considered the report on mHealth, May 26, 2018, In the World Health Assembly, a decision-making body in the World Health Organization, there was a resolution written about the growing importance of digital technologies. It is a first step of WHA to recognize digital healthcare services such as mHealth and eHealth as enablers of SDGs.

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